EXHIBIT C

IN THE UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT

AMERICAN SECURITIES ASSOCIATION and CITADEL SECURITIES LLC,

Petitioners,

v.

UNITED STATES SECURITIES AND EXCHANGE COMMISSION,

Respondent,

Case No. 26-10936

DECLARATION OF STEPHEN JOHN BERGER

1. My name is Stephen John Berger. I am a Managing Director and the Global Head of Government & Regulatory Policy at Citadel Securities LLC (Citadel Securities). I have served in that position since 2011.

2. I am over 18 years old. This Declaration is based upon my personal knowledge and belief and/or upon my review of business records of Citadel Securities. If called as a witness, I could and would testify competently thereto.

Citadel Securities

3. Citadel Securities is broker-dealer that has been registered with the U.S. Securities & Exchange Commission (SEC) since 2002. In addition to being a registered broker-dealer, Citadel Securities is also a member of the Financial

Industry Regulatory Authority (FINRA) and all U.S. registered national securities exchanges.

4. Citadel Securities' officers direct, control, and coordinate the company's activities from its headquarters and principal place of business, which is located at 200 S. Biscayne Blvd., Miami, Florida 33131.

5. As a broker-dealer, Citadel Securities regularly buys and sells publicly traded stocks both on U.S. securities exchanges and over-the-counter on its own behalf and on behalf of retail and institutional clients.

The 2023 Funding Order's Effects on Citadel Securities

6. On September 6, 2023, the SEC issued an order setting forth the funding of the Consolidated Audit Trail (CAT). 88 Fed. Reg. 62628 (2023 Order).

7. The 2023 Order provided that the CAT would be funded through a new transaction tax—a CAT fee—on every executed share in the U.S. equities and options markets which will be paid to an entity known as CAT LLC. *See* 2023 Order 62629-30.

8. Under the 2023 Order, Citadel Securities was required to pay the fee imposed on each executed share where Citadel Securities was considered to be the executing broker. The Order also authorized the exchanges and FINRA to pass 100% of their costs relating to the CAT onto their member broker-

dealers, including Citadel Securities. *See* 2023 Order 62684 n.1135, 62637-38, 62666. In fact, FINRA sought to pass its costs onto its member firms, including Citadel Securities. *See* FINRA Cost-Shifting Filing, https://perma.cc/WT9G-PT63. Under the Order, all of the exchanges were permitted to do the same at any time. *See* 2023 Order 62684 n.1135, 62637-38, 62666.

9. The U.S. Court of Appeals for the Eleventh Circuit vacated the 2023 Order as unlawful in July 2025. *Am. Sec. Ass'n v. SEC*, 147 F.4th 1264 (11th Cir. 2025).

10. Broker-dealers paid over $300 million in CAT fees under the 2023 Order. *See* 2024 CAT LLC Budget (July 31, 2024), https://perma.cc/D488-6RKS; 2025 CAT LLC Budget (Nov. 7, 2025), https://perma.cc/6QE6-M4Z4. Citadel Securities paid a total of $56,424,119 in CAT fees to CAT LLC and to reimburse FINRA for its portion of CAT fees under the auspices of the 2023 Order.

11. Citadel Securities has not received a refund of CAT fees it paid under the 2023 Order, including any portion of CAT LLC's current reserve that is attributable to Citadel Securities.

The 2026 Funding Order's Effects on Citadel Securities

12. On March 16, 2026, the SEC issued an order approving a funding model for the CAT that is "substantively identical" in nearly all respects to the

version approved by the now-vacated 2023 Order. 91 Fed. Reg. 13410, 13415 (2026) (2026 Order).

13. As with the 2023 Order, the 2026 Order will require Citadel Securities to pay the fee imposed on each executed share where Citadel Securities is considered to be the executing broker. 2026 Order 13414-25. The 2026 Order also authorizes the exchanges and FINRA to "indirectly" pass 100% of their costs relating to the CAT onto their member broker-dealers, including Citadel Securities, by increasing existing regulatory fees. *Id.* at 13413.

14. The effect of these costs on Citadel Securities and other broker-dealers will be substantial, given that the 2026 Order estimates that broker-dealers will bear anywhere between $297.8 million and $446.6 million in annual CAT costs between 2026 and 2028. 2026 Order 13465-66.

15. CAT fees will make the execution of trades more expensive. Each executed trade will result in additional costs payable by buying and selling executing broker-dealers, including Citadel Securities. And increased regulatory fees will make the general costs of doing business more expensive for broker-dealers, including Citadel Securities.

I declare under penalty of perjury that the foregoing is true and correct to the best of my knowledge.

Executed on April 2, 2026.

Stephen John Berger